LAW

LAW 502

# Torts

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| **TERM** | Fall 2026 | **LAST UPDATED** | November 12, 2026 |
| **MEETINGS** | M, W, F | **LOCATION** | See Schedule |
| **TEACHING ASSISTANTS** | Anna Kathryn Charbonnet; Braden Ryder; Michael Day; Michael Ostbloom; Shamaria Brooks | | |
| **OFFICE HOURS** | I am usually available to meet you all days of the week, either in my office or on Zoom. My office is in Room 414. See current schedule here. You can make an appointment, but don't need one. | | |

Monday and Wednesday classes meet in Room 251 from 1:15 to 2:30 p.m. Starting November 13, Friday classes meet in Room 250 from 10:00 to 11:15 a.m. through the end of the semester.

## Course Description

General principles of civil liability for breach of duty created by law, including: intentional interference with person and property and privileges thereof; negligence and the defenses thereof; damages, wrongful death and survival, imputed negligence, strict liability, products liability, nuisance, misrepresentation, defamation, privacy, misuse of legal procedure, interference with advantageous relationships and major statutory modifications (no-fault insurance). *Extracted from the Academic Catalog.*

## Programmatic Learning Outcomes

The learning objectives of this course are tied to the following MC Law Learning Outcomes:

1. Graduates will demonstrate an understanding and fundamental knowledge of the basic rules, theoretical foundations, and principles of substantive and procedural law.

2. Graduates will demonstrate effective analytical and problem-solving skills.
3. Graduates will effectively communicate their legal reasoning both in writing and orally.
4. Graduates will demonstrate knowledge and understanding of a lawyer's moral, ethical, and professional responsibilities to clients, the profession, and the community.

## Course Goals and Learning Outcomes

By the end of the semester, you should be able to:

1. ***Explain*** the elements of a reported opinion: procedural facts, legally relevant facts, issue(s), holding(s), reasons and policies, legal rules, and disposition.
2. ***Identify*** the claims and defenses of major intentional, negligent, and other tort claims.
3. ***Analyze*** torts cases, statutes, and secondary sources.
4. ***Apply*** tort claims, defenses, and policies to simple and complex fact patterns.
5. ***Distinguish*** which facts are relevant and which additional facts are needed to establish a torts claim or defense.
6. ***Make*** logical inferences about facts relevant to specific torts.
7. ***Distinguish*** which tort issues and elements are decided by judges and which by juries (or judges sitting as fact finders).
8. ***Write*** clearly about torts analysis in an organized way, using evidence and following requested formats.
9. ***Examine*** torts arguments and predictions to identify counterarguments and weaknesses.
10. ***Participate*** professionally in class, including collaborating effectively with classmates.
11. ***Engage*** in thoughtful reflection and self-assessment.

(Extracted from Michael Hunter Schwartz et al., Teaching Law by Design (3d ed. 2026).)

## Required Materials

- Ward Farnsworth & Mark F. Grady, Torts: Cases and Questions (3d ed. 2019) (hereinafter "**CB**").

- Kenneth S. Abraham, The Forms and Functions of Tort Law (6th ed. 2022) (hereinafter "**FF**"). Digital access is available through the library's West Academic Study Aids subscription.

Additional materials will be linked from the schedule or posted through the course's ordinary distribution channel.

## Assessment and Grading

- **Professional engagement: 15%.** You will be assessed on your classroom preparation and participation, completion of ungraded assignments, and adherence to other professional expectations applicable to aspiring members of the legal profession. High standards will set the bar, but I recognize that we are human; perfection will not be required for full credit on professional engagement. *Refer to the next section.*
- **Midterm examination: 10%.** A closed-book midterm will include an essay problem and multiple-choice questions. The midterm will take roughly one class period and will be subject to a word-count limit.
- **Final examination: 75%.** A closed-book final examination will include essay and multiple-choice questions. The final will take roughly two hours and will also be subject to a word-count limit.

This course is subject to the Mandatory Class Average for First Year Required Doctrinal Courses policy, according to which "the grade point average . . . shall be between 2.50 and 2.7999."

You will be provided with a grade estimate after one or more ungraded practice essays. These estimates should provide transparency and help you understand how you will be graded. As the midterm and final approach, you will receive more information about grading.

## Professional Engagement

### Preparation

Complete assignments (readings and exercises) before class and come prepared to discuss them.

Preparation means fully engaging with the materials. The casebook's Notes include guiding questions. You should apply yourself to answering these questions. I encourage you to do so in writing and to brief the principal discussed cases (typically excerpted at length at the opening of a section). I recommend this CALI resource on preparing for class, briefing cases, and developing your outline.

The goal of preparation is two-fold. *First*, the law is a practice, and you learn it by practicing. There is not enough time to practice in class, and some practice requires focused reading and analysis that cannot happen in class. Per ABA Standard 310(b)(1), each credit hour requires "not less than one hour of classroom or direct faculty instruction and two hours of out-of-class student work per week for fifteen weeks, or the equivalent amount of work over a different amount of time." For this four-credit course, this means at least eight hours of out-of-class preparation per week.

*Second*, part of the class is built upon a dialogue—the Socratic method—, which assumes prepared interlocutors. Your preparation is therefore essential to both your education and to a successful class.

### Classroom Participation

In-class participation is vital in part because oral prowess is a crucial lawyerly competence. You must *practice* it. It is not enough to hear others (your classmates and me) do it. This is much like mastering a language: it is not enough to listen to it being spoken; you must speak the language yourself. All students are always welcome to participate. I will make sure that all voices are heard in class.

I also understand that speaking up in class can be intimidating and stressful. The course is structured to mitigate those impediments to participation through a mix of strategies.

- For cold calling, a panel of students will be "on deck"—that is, designated to answer case questions that day. You will be "on deck" for roughly 20% of classes with an on-deck panel. You may sign in as unprepared once during the semester if you are not ready to be on deck that day. The schedule identifies the panel assigned for each class by number. A Canvas page lists the members of each panel.
- "Room temperature" calling: Other classroom discussion may follow warm-up activities, during which you will have time to write an answer to a question or discuss it in pairs or groups before joining a whole-class conversation. All students—not just those on deck—are then expected to engage with questions.

Professional engagement in class also refers to in-classroom activities, including the practice essays. Such activities, graded only for completion, must be taken seriously. A lack of commitment will result in a deduction.

### Scribes

In most sessions, three students will be designated as scribes. Scribes will be allowed to use devices in the classroom to take notes. The notes will then be shared with the whole class. Scribes must upload their notes by 1:00 P.M. on the day following class. Each student will serve as a scribe twice. A table showing each student's assigned dates is available on Canvas.

### Responding to Disagreement

Professional engagement in class does not mean only answering questions I pose, but also listening respectfully and attentively to all members of the class and respond-

ing thoughtfully. Tort cases can elicit fundamental disagreements between different people. When faced with disagreement of this kind, you will often learn more with a stance of openness and curiosity about other perspectives, rather than digging in your heels.

Your education will prepare you to work through disagreements professionally and productively. This applies with force in matters of social controversy or political polarization. In this course, we will not adjudicate those matters, but neither will we shy away from them when the discussion is appropriate given the doctrine or case at hand. If such a situation arises, we will always seek to ground arguments and counterarguments and test them against the structure of tort law. I may therefore ask you to consider these issues from the perspective of the coherence and integrity of doctrine. This does not mean that broader social and political disagreements are unimportant or must be subordinated to legal doctrine. It means only that, in this course, we will approach them in ways that illuminate tort law and support learning.

### Professional Conduct

Members of the legal profession are expected to behave with civility and decorum. This standard also applies to this course, in and out of class, to students, teaching assistants, law school personnel, me as your instructor, and any guest speakers or lecturers. Note that this goes both ways: I also owe you civility and respect, and so do the teaching assistants. You will not be policed for slips and missteps, in your use of language or otherwise. But you should be mindful. Professional conduct is not about never making mistakes, but about recognizing one and apologizing for it.

## Syllabus Revisions and Student Feedback

Dates, activities, and assignments may be revised as the course progresses. I will announce material revisions in class and through Canvas. The website schedule will be updated to reflect the current assignment. Some flexibility will allow us to spend more time on difficult material and respond to the pace of the course.

Likewise, because I want to be able to respond and do what is best for you, course design may be changed. I welcome thoughtful feedback about what is and is not working, and I may adjust the course in response to your needs and our progress. Feedback is most useful when it is respectful, specific, and constructive. I will listen carefully while continuing to exercise my professional judgment as your teacher.

## Course Policies

The following policies are in place to support your learning and our class as a healthy learning community. Violations may be grounds for loss of course credit and referral to the Dean's Honor Code Advisor for investigation and potential sanctions.

### Class Attendance

*Attendance is mandatory.*

Students who do not attend at least 75% of regularly scheduled classes will fail the course. It is your responsibility to track your attendance. Repeated late arrivals, whether consecutive or not, may be counted as an absence. Early departures without permission and extended absences from the classroom may also be counted as an absence.

#### *Why this policy exists*

MC Law policy requires attendance, as per the Academic Catalog. A classroom environment free from disruptions is important for learning.

### Controlled In-Classroom Device Use

*Device use is allowed only when explicitly authorized.*

You may not use your laptop, tablet, smartphone, or other device without permission. Some activities may involve device use. Device use authorized by an approved accommodation is exempt from this policy. There will be three scribes taking notes for regular classes, and their notes will be shared with the whole class. Their notes are meant to supplement, not replace, your own notes.

#### *Why this policy exists*

In-classroom devices can be distracting not only to the user but also to others nearby. Distracting device use can also corrode classroom engagement. While other uses may be helpful, I do not want to spend time and energy policing what you are doing behind the screen or impose that responsibility on your fellow students. At the same time, lawyers are expected to be competent users of technology. This policy seeks to strike that balance with a mixed approach. Scribes are one part of this approach. Another is incorporating classroom activities in which device use will be expected.

### Controlled AI Use

*You are not allowed to use chatbots, agents, or otherwise rely on generative AI for classroom participation. Other AI use will be controlled.*

You may not use generative AI to help answer questions in class without explicit instruction to do so. When in-class activities call for the use of devices, your use of generative AI, if allowed, must follow the guidance I set out.

#### *Why this policy exists*

One of the skills you will develop throughout law school is mastery of professional tools. We must be deliberate in our in-class and out-of-class use of such tools. In a first-semester course like Torts, however, I will generally prioritize other skills. You may be asked to use your computer and generative AI systems for some activities. For others, use of generative AI and your laptop will not be permitted. With this hybrid and experimental approach, my goal is that your use of tools, particularly generative AI, will support and augment your education and the development of your professional judgment.

### No Unauthorized Recording; No Smart Glasses

*You are not allowed to make recordings of class sessions. Smart glasses and similar devices are not allowed in the classroom.*

Video or audio recording is not allowed without permission. Smart glasses and similar devices may not be worn in class, even if they are not actively recording. Exceptions will be made only for approved accommodations.

#### *Why this policy exists*

In-class learning in a course like ours is best when everyone feels free to engage openly in discussion. Recordings—and the immediate prospect of recording created by smart glasses—jeopardize that.

### University- and School-Wide Policies Apply

*Refer to the Office of the Provost's MC Syllabus webpage for additional policies.*

## Schedule

Subject to change as classes progress.

*Update, November 12.* Starting November 13, Friday classes meet in Room 250 from 10:00 to 11:15 a.m. through the end of the semester. Practice Essay #2 will take place on Friday, November 13, from 11:20 a.m. to 1:00 p.m. in Room 250. Students who complete the essay on their own may submit it by Monday, November 16, at 9:00 a.m. Practice Essay #3 remains tentative for November 20 during the Friday class slot.

*Update, October 26.* The remaining schedule has been revised following completion of but-for causation. The negligence summary is November 4, and the strict-liability summary is November 30. The two damages classes have been removed; the December 2 class is TBD. All remaining on-deck panel assignments have been revised: Panel 4 begins with alternative liability on October 28, followed by Panels 5, 1, 2, and 3 in rotation across classes with an on-deck panel. Scribe assignments and individual on-deck exceptions have also been revised; see the course's private role-assignment schedule for individual duties. December 2 roles remain provisional. See the revised schedule below for readings and on-deck assignments.

*Update, September 24.* Class will start early, at 12:50 P.M., on September 28, October 7, and October 9.

*Update, September 21.* In light of the cancellation of the September 9 class, the practice essay originally scheduled for October 2 has been eliminated. Panel 4 and the scribes originally assigned to September 9 are now assigned to October 2. Other on-deck and scribe assignments remain on their originally assigned dates.

| # | Date | Class | Readings |
|---|---|---|---|
| | | **Welcome!** | |
| 1 | Aug. 17 (M) | Introduction; What is a tort?<br>***Assignment:*** *Complete the pre-course survey before class.* | **CB:** xxvii–xxxix<br>**FF:** 1–5<br>Orin S. Kerr, *How to Read a Legal Opinion: A Guide for New Law Students*, 11 Green Bag 2d 51 (2007) |
| | | **Unit 1 — Intentional Torts** | |
| 2 | Aug. 19 (W) | Battery—intent<br>On deck: Panel 1 | **CB:** 1–11 (*Vosburg* and Notes 1–13)<br>**FF:** 25–30 |
| 3 | Aug. 21 (F) | Battery—harmful or offensive touching<br>On deck: Panel 2 | **CB:** 11–14 |

| # | Date | Class | Readings |
|---|---|---|---|
| 4 | Aug. 24 (M) | Battery—consent<br>On deck: Panel 3 | **CB:** 14–21 (through Note 5)<br>**FF:** 37–39 |
| 5 | Aug. 26 (W) | Trespass<br>On deck: Panel 4 | **CB:** 26–32 (*Desnick* and Notes 1–7)<br>**FF:** 41–42 |
| 6 | Aug. 28 (F) | Conversion<br>On deck: Panel 5 | **CB:** 37–41 (Introduction and Notes 1–2); 42–45 (Notes 5–7); 46–50 (Notes 10–12) |
| | Aug. 31 (M) | TA session #1<br>**Optional** · 12:00–1:00 P.M. · *Room 251* | |
| 7 | Aug. 31 (M) | False imprisonment<br>On deck: Panel 1 | **CB:** 50–59<br>**FF:** 32–33 |
| 8 | Sept. 2 (W) | Assault<br>On deck: Panel 2 | **CB:** 59–64 (Notes 1–4)<br>**FF:** 30–32 |
| 9 | Sept. 4 (F) | Intentional infliction of emotional distress<br>On deck: Panel 3<br>*Class will be held on Zoom.* | **CB:** 64–75 (Introduction, Givelber excerpt, and Notes 1–8)<br>**FF:** 34–37 |
| | Sept. 7 (M) | Labor Day | |
| | Sept. 9 (W) | Class cancelled | |
| 10 | Sept. 11 (F) | Privileges—defense of person and property<br>On deck: Panel 5 | **CB:** 79–81 (*Katko*); 83–87 (Notes 4–8)<br>**FF:** 40–41 |
| 11 | Sept. 14 (M) | Privileges—private and public necessity | **CB:** 89–91 (*Ploof* and Notes 1–2); 91–97 (*Vincent* and Notes 1–5); 98–100 (Notes 2–4)<br>**FF:** 42–50 |
| 12 | Sept. 16 (W) | Practice essay #1 | |
| 13 | Sept. 18 (F) | Summary: Intentional torts<br>On deck: Panel 1 | |
| | | **Unit 2 — Negligence: Introduction and Standard of Care** | |
| 14 | Sept. 21 (M) | Negligence: Introduction, standard of care, and the reasonable person<br>On deck: Panel 2 | **CB:** 112 (Restatement 283); 115–119 (Notes 2–5); 122–123 (Notes 1–2); 127–128 (Note 4)<br>**FF:** 68–73 |

| # | Date | Class | Readings |
|---|---|---|---|
| 15 | Sept. 23 (W) | Risks and precautions<br>On deck: Panel 3 | **CB:** 128–138 (*Carroll Towing* and Notes 1–6); 140–142 (Note 8); 144–146 (Notes 10–12)<br>**FF:** 78–85 |
| 16 | Sept. 25 (F) | Custom and the problem of medical malpractice<br>On deck: Panel 4 | **CB:** 146–147 (*T.J. Hooper*); 149–151 (Notes 3–4); 151–156 (Notes 5–9)<br>**FF:** 85–99 |
| 17 | Sept. 28 (M)<br>*starts at* 12:50 P.M. | Negligence *per se*; judge and jury<br>On deck: Panel 5 | **CB:** 156–164 (*Herzog* and Notes 1–9); 168–173 (Holmes excerpt and Notes 1–5)<br>**FF:** 99–108 |
| 18 | Sept. 30 (W) | *Res ipsa loquitur* (I)<br>On deck: Panel 1 | **CB:** 174–178 (*Byrne* and Notes 1–3); 179–180 (Notes 5–7); 182–186 (*Judson* and Notes 2–3)<br>**FF:** 109–114 |
| 19 | Oct. 2 (F) | *Res ipsa loquitur* (II)<br>On deck: Panel 4<br>*On-deck panel and scribes reassigned from September 9.* | **CB:** 188–194 (*Ybarra* and Notes 1–7)<br>**FF:** 114–123 |
| | | **Midterm** | |
| 20 | Oct. 5 (M) | Midterm examination | |
| | | **Unit 3 — Negligence: Defenses** | |
| 21 | Oct. 7 (W)<br>*starts at* 12:50 P.M. | Contributory and comparative negligence<br>On deck: Panel 2 | **CB:** 493–494 (Introduction and Notes 1–2); 499–503 (*McIntyre* and Note 1); 505–507 (Notes 5–10)<br>**FF:** 173–190 |
| 22 | Oct. 9 (F)<br>*starts at* 12:50 P.M. | Express, primary, and secondary assumption of the risk<br>On deck: Panel 3 | **CB:** 508–514 (Notes 1–6); 515–519 (*Murphy* and Note 1); 522–523 (Note 6); 523–527 (through Note 2); 528–529 (Note 4)<br>**FF:** 190–195 |

| # | Date | Class | Readings |
|---|---|---|---|
| | | **Unit 4 — Negligence: Duties** | |
| | Oct. 12 (M) | TA session #2<br>**Optional** · 12:00–1:00 P.M. · *Room 251* | |
| 23 | Oct. 12 (M) | Duties arising from affirmative acts<br>On deck: Panel 4 | **CB:** 195–201 (Introduction, *Yania*, and Notes 1–3); 202–205 (Notes 5–7)<br>**FF:** 261–263 |
| 24 | Oct. 14 (W) | Duties arising from undertakings<br>On deck: Panel 5 | **CB:** 205–210 (*Hurley* and Notes 1–6)<br>**FF:** 263–265 |
| | Oct. 16 (F) | Wellness Break | |
| 25 | Oct. 19 (M) | Special relationships<br>On deck: Panel 1 | **CB:** 211–216 (Notes 1–6); 217–221 (*Tarasoff* and Notes 1–2)<br>**FF:** 265–268 |
| 26 | Oct. 21 (W) | Duties arising from the occupation of land<br>On deck: Panel 2 | **CB:** 228–229 (Notes 1–2); 230–240 (Note 5 on page 230 through Note 5 on page 240)<br>**FF:** 268–271 |
| | | **Unit 5 — Negligence: Causation** | |
| 27 | Oct. 23 (F) | But-for causation<br>On deck: Panel 3 | **CB:** 271–272 (Introduction and *Grimstad*); 276–277 (Note 4); 278–284 (*Herskovits* and Note 1)<br>**FF:** 125–131 |
| 28 | Oct. 26 (M) | But-for causation (continued)<br>On deck: Panel 4<br>*Continuation of the October 23 assignment.* | |
| 29 | Oct. 28 (W) | Alternative liability<br>On deck: Panel 4 | **CB:** 290–293 (*Summers* and Notes 1–4); 294–300 (*Sindell* and Notes 1–7)<br>**FF:** 131–148 |
| 30 | Oct. 30 (F) | Proximate causation: remoteness and foreseeability<br>On deck: Panel 5 | **CB:** 305–318 (*Polemis*, *Overseas Tankship*, and Notes 1–12)<br>**FF:** 149–154 |

| # | Date | Class | Readings |
|---|---|---|---|
| 31 | Nov. 2 (M) | Proximate causation: intervening causes and limitation of duty<br>On deck: Panel 1 | **CB:** 318–325 (*Brauer* and Notes 1–8d); 328–335 (*Palsgraf*)<br>**FF:** 154–172 |
| 32 | Nov. 4 (W) | Summary: Negligence | |
| 33 | Nov. 6 (F) | Practice Essay #2 moved to November 13 | |
| | | **Unit 6 — Strict Liability and Products Liability** | |
| | Nov. 9 (M) | TA session #3<br>**Optional** · 12:00–1:00 P.M. · *Room 251* | |
| 34 | Nov. 9 (M) | Liability for animals; strict liability and negligence<br>On deck: Panel 2 | **CB:** 343–350 (Introduction, *Behrens*, and Notes 1–4); 353–356 (*Rylands* and Notes 1–2); 358–359 (Notes 7–8)<br>**FF:** 197–206 |
| 35 | Nov. 11 (W) | Abnormally dangerous activities<br>On deck: Panel 3 | **CB:** 362–367 (Restatements 519 and 520, and *Indiana Harbor*); 368–369 (Note 2); 372 (New Restatement)<br>**FF:** 206–212 |
| 36 | Nov. 13 (F) 10:00–11:15 A.M. · Room 250 | *Respondeat superior*<br>On deck: Panel 4<br>**Activity: Practice Essay #2** follows class, from 11:20 a.m. to 1:00 p.m. in Room 250. Students working independently may submit by Monday, November 16, at 9:00 a.m. | **CB:** 373–378 (*Bushey* and Notes 1–5); 379–381 (Notes 7–8)<br>**FF:** 212–214 |
| 37 | Nov. 16 (M) | Products liability: manufacturing defects and design defects<br>On deck: Panel 5 | **CB:** 385–394 (*MacPherson* and *Escola*); 400–405 (Restatement and *Welge*); 412–420 (Restatement, *Dawson*, and Notes 1–3)<br>**FF:** 225–235 |
| 38 | Nov. 18 (W) | Products liability: failure to warn<br>On deck: Panel 1 | **CB:** 424–428 (*American Tobacco*); 434–437 (Notes 6–8); 438–442 (*McMahon* and Note 1) |

| # | Date | Class | Readings |
|---|---|---|---|
| 39 | Nov. 20 (F) 10:00–11:15 A.M. · Room 250 | Practice essay #3<br>*Tentative.* | |
| | | **Thanksgiving break** | |
| | Nov. 23 (M) | Thanksgiving holiday | |
| | Nov. 25 (W) | Thanksgiving holiday | |
| | Nov. 27 (F) | Thanksgiving holiday | |
| | | **Final classes** | |
| 40 | Nov. 30 (M) | Summary: Strict liability | |
| 41 | Dec. 2 (W) | TBD<br>On deck: Panel 2<br>*Final MWF class meeting. Panel assignment is provisional pending the topic.* | |

## Acknowledgements

This syllabus and course draw on colleagues' syllabi, teaching materials, and conversations. I am grateful to Claudia Haupt, on whose generosity I relied heavily for course design, text selection, and assignments. I am also indebted to Asaf Lubin for his generous advice and materials shared. I owe thanks to James Grimmelmann, Mary Purvis, Frank Rosenblatt, and Jon Will for much needed advice on legal pedagogy. Lastly, my appreciation to Howard E. Katz and Michael Hunter Schwartz.